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April 9, 2026

VIA EMAIL

Sergeant Eric Dutra, ID 19981
Dublin Area, California Highway Patrol
4999 Gleason Drive
Dublin, CA 94568

cc: Captain G. Serrato, Commander, Dublin Area CHP

Re: Formal Request for U Nonimmigrant Status Certification
Pursuant to Form I-918 Supplement B; 8 U.S.C. § 1101(a)(15)(U);
California Penal Code § 679.10 (as amended by AB 1261, eff. Jan. 1, 2024)
CHP File No.: 390.18437.17620
POST Complaint No.: PUBLIC-26-000371
A-Number: 203-115-087

Dear Sergeant Dutra:

I write respectfully to request that you, as the assigned certifying official, execute the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification, in connection with CHP File No. 390.18437.17620. This request is made pursuant to the Victims of Trafficking and Violence Protection Act of 2000 (VTVPA), 8 U.S.C. § 1101(a)(15)(U), and the mandatory certification provisions of California Penal Code § 679.10, as strengthened by AB 1261 (Stats. 2023, Ch. 679), effective January 1, 2024.

I am writing to you specifically because Captain G. Serrato's March 26, 2026 letter designated you as the assigned investigator for my citizen complaint. Additionally, the Commission on Peace Officer Standards and Training (POST) forwarded my complaint to CHP on March 23, 2026, under Case No. PUBLIC-26-000371, confirming that the matter is under active agency review. The enclosed Supplement B form has been pre-filled with the factual information required under the federal regulations and is ready for your review and signature.

I. CALIFORNIA LAW MANDATES CERTIFICATION

California Penal Code § 679.10 imposes affirmative, non-discretionary obligations on state law enforcement agencies—including CHP—to process U visa certification requests. Specifically:

> **Mandatory Processing:** Under § 679.10(j), a certifying entity "shall process a Form I-918 Supplement B certification within 30 days of request." This is not a discretionary guideline; it is a legislative mandate.
>
> **Rebuttable Presumption of Helpfulness:** Under § 679.10(h), there is a "rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. I have not refused any such request. To the contrary, I have affirmatively cooperated at every stage.
>
> **No Prosecution Required:** Under § 679.10(k), "a current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The CHP's investigation need not be complete—nor need it result in prosecution—for the certification to issue.
>
> **Limited Grounds for Withdrawal:** Under § 679.10(l), a certifying official "may only withdraw the certification if the victim refuses to provide information and assistance when reasonably requested." No such refusal has occurred here.

The California Attorney General's Information Bulletin No. DLE-2024-05, issued to all state and local law enforcement agencies, reaffirms these obligations and encourages agencies to "be vigilant in identifying and supporting immigrant crime victims who may be eligible for U visas."

II. THE STATUTORY ELEMENTS ARE SATISFIED

To obtain a U visa certification, three elements must be established: (1) the petitioner is a victim of qualifying criminal activity; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the investigation or prosecution. Each element is met here.

A. Qualifying Criminal Activity

On November 1, 2024, on Interstate 580 East in Livermore, Alameda County, CHP Officers Santiago Meza-Gonzalez (#023295) and Jose Melano (#023054) subjected me to criminal conduct constituting multiple qualifying offenses under 8 U.S.C. § 1101(a)(15)(U)(iii), including:

> **False Imprisonment / Unlawful Criminal Restraint** (Cal. Penal Code § 236)—I was unlawfully arrested, handcuffed, and detained; the arrest was subsequently reclassified as a "detention" in a revised report, an implicit acknowledgment that the initial restraint was without legal justification;
>
> **Felonious Assault / Battery** (Cal. Penal Code § 242)—an involuntary blood draw was performed on my person based on a misrepresented warrant, constituting an unlawful application of force;

Obstruction of Justice (analogous to Cal. Penal Code §§ 118, 182)—the officers fabricated sworn arrest reports that are directly contradicted by the CHP's own dashcam recording, constituting the creation of false evidence under penalty of perjury; and

Perjury (Cal. Penal Code § 118)—false statements in sworn reports contradicted by objective dashcam evidence.

Each of these offenses is independently enumerated as qualifying criminal activity under the VTVPA. The dashcam transcript—objective, contemporaneous evidence in CHP's own custody—corroborates these allegations and directly contradicts the officers' written reports.

B. Possession of Information

As the direct victim and sole civilian percipient witness to the November 1, 2024 incident, I possess firsthand information regarding every aspect of the qualifying criminal activity. I have gathered and preserved key evidence, including the dashcam transcript, the arrest report, and the certificate of detention—all of which I have made available to CHP through this complaint process.

C. Helpfulness

I have been helpful, am currently being helpful, and am likely to continue being helpful in the investigation of this criminal activity. My cooperation includes: filing the citizen complaint that initiated this investigation (File No. 390.18437.17620); filing a separate complaint with the Commission on Peace Officer Standards and Training (POST Case No. PUBLIC-26-000371); participating in DMV administrative proceedings related to the incident; gathering and preserving the dashcam transcript as objective evidence; and presenting all evidence to CHP and related agencies. At no time have I refused or failed to provide information or assistance reasonably requested by any investigating entity.

Under § 679.10(h), these facts create a rebuttable presumption of helpfulness that can only be overcome by evidence that I have refused to cooperate. No such evidence exists.

III. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

I have suffered substantial physical and mental abuse as a direct result of the qualifying criminal activity, including: physical pain from forcible handcuffing and an involuntary blood draw; the trauma and humiliation of an unlawful arrest and incarceration; extended detention triggered by a fabrication-induced parole hold; severe and ongoing emotional distress and anxiety; complete loss of my Commercial Driving License and livelihood for one full year (DMV suspension effective February 20, 2025 through February 19, 2026); and lasting reputational and economic harm that continues to this day. These consequences are well-documented in the record before CHP.

IV. IMPORTANT CLARIFICATIONS FOR THE CERTIFYING OFFICIAL

I respectfully call your attention to several points the Department of Homeland Security and the California Attorney General have emphasized for certifying officials:

Signing the certification does not grant a visa. The Form I-918 Supplement B is not a visa approval. It is a factual certification that the individual is or was a victim of qualifying criminal activity and has been helpful. USCIS independently adjudicates the visa petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone.

This certification concerns the officers' conduct, not the outcome of the complaint. The standard is whether the petitioner is a victim of qualifying criminal activity and has been helpful—not whether the investigation has concluded or discipline has been imposed. California law is explicit that no prosecution, conviction, or even a pending investigation is required.

CHP has a public-safety interest in certifying. As the DHS U Visa Law Enforcement Resource Guide emphasizes, certifying U visa petitions builds trust within communities, encourages crime reporting, and strengthens law enforcement's ability to detect, investigate, and prosecute criminal activity. CHP's cooperation here advances these goals.

V. TIME-SENSITIVE REQUEST AND 30-DAY STATUTORY DEADLINE

Please be advised that California Penal Code § 679.10(j) requires the certifying entity to process this certification request within 30 days of receipt. I respectfully request that CHP treat this letter as the formal date of request for purposes of the statutory clock. Accordingly, the deadline for processing this certification is **no later than May 9, 2026**.

Should CHP determine that it cannot certify this request, § 679.10(g) requires the certifying entity to provide "a written explanation of the specific reasons for the denial." A generalized or pro forma denial would not satisfy this statutory obligation.

VI. ENCLOSURES

Enclosed for your review and execution please find:

1. Completed Form I-918 Supplement B (unsigned, ready for signature)
2. POST Letter of Acknowledgment, Case No. PUBLIC-26-000371 (dated 03/23/2026)
3. CHP Complaint Assignment Letter from Captain Serrato (dated 03/26/2026)
4. Request for Certification and Supporting Legal Analysis (attached separately)

I appreciate your time and attention to this matter. This request is made in good faith and in the spirit of the legislative policy underlying both the VTVPA and California's Immigrant Victims of Crime Equity Act: that immigrant victims of crime who cooperate with law enforcement should have meaningful access to the protections Congress and the California Legislature have provided.

I remain available to provide any additional information you may require. You may reach me at the address and telephone number listed above, or by email at bnn.cdl@gmail.com. I look forward to your timely response within the statutory period.

Respectfully submitted,



Brendan N. Newanforbi
Pro Se Petitioner

Enclosures (4)
cc: Captain G. Serrato, Commander, Dublin Area CHP
Commission on POST, Intake and Disposition Bureau